



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

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CRM-M-30614-2026

Date of Decision.:16.06.2026

Jagmeet Singh @ Lalli

.....Petitioner

Vs.

State of Haryana

.....Respondent

CORAM:- HON'BLE MR. JUSTICE DEEPAK GUPTA

Present:- Mr. Namit Khurana, Advocate
for the petitioner.

Mr. Abhinav Mahant, AAG, Haryana.

DEEPAK GUPTA, J. (ORAL)

By way of the present petition filed under Section 483 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the petitioner seeks grant of regular bail in FIR No.1008 dated 22.12.2024 registered under Sections 406, 420 and 506 IPC along with Sections 10 and 24 of the Immigration Act, 1983 at Police Station Shahabad, District Kurukshetra.

2. Learned counsel for the petitioner contends that the petitioner has been falsely implicated. It is argued that the allegations levelled in the FIR are inherently improbable and that the petitioner had no role in the alleged commission of the offence. Learned counsel further submits that on the dates when the amount is alleged to have been received by the petitioner, he was residing abroad and was not physically present in India. It is also submitted that the investigation stands substantially completed and no useful purpose would be served by continued incarceration of the petitioner. Prayer has, thus, been made for grant of regular bail.



3. *Per contra*, learned State counsel opposes the petition and submits that the allegations disclose a serious economic offence involving cheating under the guise of facilitating immigration abroad. It is argued that the petitioner received a substantial amount from the complainant on the promise of sending his son abroad but neither fulfilled the promise nor refunded the amount. Learned State counsel further submits that the petitioner was apprehended at the airport while attempting to leave the country and had to be arrested pursuant to a Look Out Circular. It is, therefore, contended that there is a genuine likelihood of the petitioner absconding if enlarged on bail.

4. I have heard learned counsel for the parties and perused the record.

5. As per the allegations in the FIR, the complainant paid an amount of ₹17,00,000/- to the petitioner for arranging the migration of his son abroad. It is further alleged that when the promised services were not rendered, the matter was taken before the Economic Cell, where a compromise was effected and the petitioner issued three cheques towards repayment of the amount. However, the said cheques were dishonoured and the amount remained unpaid, resulting in registration of the present FIR.

6. The allegations, therefore, are not confined merely to a breach of contract or a civil dispute. Prima facie, the prosecution case suggests inducement, receipt of substantial money on false assurances and subsequent failure to honour even the settlement arrived at between the parties. Such allegations attract the ingredients of cheating and offences under the Immigration Act, which have serious ramifications upon public confidence in lawful immigration processes.

7. The contention of the petitioner that he was outside India



when the money was allegedly received does not persuade this Court to grant bail at this stage. As rightly noticed by the Court below, the nature of the allegations does not necessarily require the physical presence of the petitioner at the place where the transaction occurred. Whether the amount was received directly by him, through intermediaries or otherwise, and the precise extent of his involvement are matters to be established during trial. At the stage of bail, the Court is only required to assess whether a prima facie case exists and not to undertake a detailed evaluation of the defence sought to be projected.

8. A significant circumstance which weighs against the petitioner is that he was apprehended from the airport while attempting to leave the country and a Look Out Circular had been issued against him. The object of bail is to secure the presence of the accused during trial and to ensure that the administration of criminal justice is not defeated. Where the material on record indicates a real possibility of the accused fleeing from the jurisdiction of the Court, such consideration assumes considerable importance while adjudicating a prayer for regular bail.

9. The apprehension expressed by the prosecution regarding the petitioner's availability during trial cannot be said to be unfounded. The petitioner admittedly has connections abroad and the circumstances leading to his arrest at the airport lend credence to the prosecution's apprehension that, if released on bail, he may evade the process of law.

10. It is also well settled that economic offences involving cheating of innocent persons stand on a different footing, as they affect not only an individual victim but also public confidence in commercial and financial dealings. The allegations involve a substantial amount of money and disclose a prima facie design to obtain wrongful gain by inducing the complainant to part with his funds.



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11. Having regard to the nature and gravity of the accusations, the amount involved, the conduct attributed to the petitioner, the fact that he was apprehended while leaving the country and the reasonable apprehension of his absconding, this Court is not inclined to exercise discretion in favour of the petitioner.
12. Consequently, the present petition is dismissed.
13. However, anything observed herein shall be construed only for the purpose of deciding the present bail petition and shall not be treated as an expression on the merits of the case during trial.

(DEEPAK GUPTA)
JUDGE

June 16, 2024
Neetika Tuteja

Whether Speaking/reasoned	Yes/No
Whether Reportable	Yes/No